

CHAPTER 248

AN ACT concerning electronic signatures on construction permits and other submissions and amending P.L.2021, c.70.

BE IT ENACTED by the Senate and General Assembly of the State of New Jersey:

1. Section 1 of P.L.2021, c.70 (C.52:27D-124.4) is amended to read as follows:

C.52:27D-124.4 "Electronic Permit Processing Review System."

1. a. The Commissioner of Community Affairs shall establish, develop, implement, and administer the "Electronic Permit Processing Review System." This electronic system shall be an Internet-based system allowing for the electronic submission of applications for construction permits, plans, and specifications pursuant to the "State Uniform Construction Code Act," P.L.1975, c.217 (C.52:27D-119 et seq.), for the electronic review and approval of applications, plans, and specifications, for the scheduling of inspections, and for the exchange of information between the applicant, the applicant's professionals, and the department or enforcing agency during the review process. The electronic system shall offer a permit applicant:

- (1) the ability to submit the materials necessary for application review;
- (2) the ability to submit requests for on-site inspection of a project;
- (3) continuous, 24-hour accessibility for the submission of both scheduling requests and the materials necessary for the permit application review; and
- (4) the ability to submit electronic signatures for all materials necessary for the permit application review, including all construction permits, plans and specifications, and for the scheduling of inspections.

b. (1) Following the effective date of P.L.2021, c.70 (C.52:27D-124.4 et al.), the commissioner may make the electronic system accessible, and facilitate its use, through the acceptance of application materials and scheduling submissions, by:

- (a) the department, with regard to applications for which the department approves plans and specifications pursuant to the "State Uniform Construction Code Act";
- (b) local enforcing agencies; and
- (c) private agencies providing plan review and inspection services.

(2) (a) Within one year following the effective date of P.L.2021, c.70 (C.52:27D-124.4 et al.), the commissioner shall fully implement the electronic system, and provide for its use, through the acceptance of application materials and scheduling submissions, by the department, with regard to applications for which the department approves plans and specifications pursuant to the "State Uniform Construction Code Act."

(b) Local enforcing agencies may elect to utilize the electronic system implemented by the department. In the alternative, a local enforcing agency may utilize a different electronic system, which system shall provide the same level of functionality as the system implemented by the department as enumerated in subsection a. of this section.

c. The commissioner shall provide training opportunities on the use of the electronic system for employees of local enforcing agencies and private agencies which provide plan review and inspection services.

d. The commissioner shall, in accordance with the "Administrative Procedure Act," P.L.1968, c.410 (C.52:14B-1 et seq.), adopt rules and regulations to govern the form and format of applications for construction permits, plans, and specifications and other information exchanged through the electronic system. Notwithstanding the requirement, pursuant to subsection b. of this section, to accept electronically submitted materials within one year following the effective date of P.L.2021, c.70 (C.52:27D-124.4 et al.), the commissioner shall

have the discretion to establish different submission requirements, including non-electronic submissions as necessary, for large, complicated, or otherwise unusual construction projects, so long as the system is designed to accept approximately 80 percent of construction permit application submissions electronically.

e. The department may waive a contrary form and format requirement imposed by statute or ordinance or by the rules of another department or agency for the submission of information in physical form to the extent the waiver is necessary to facilitate the submission of the information electronically. The department shall accept an electronic reproduction of a signature, stamp, seal, certification, or notarization as the equivalent of the original or shall accept the substitution of identifying information for the signature, stamp, seal, certification, or notarization. The department shall not waive any other requirement.

f. The commissioner may adopt, amend, and repeal rules and regulations providing for the charging of and setting the amount of construction permit surcharge fees to be collected by an enforcing agency or private agency. Fees shall be remitted to the department to defray the cost of developing and administering the electronic system by local enforcing agencies that have elected to utilize the electronic system implemented by the department.

g. A person exchanging information through the electronic system in a form and format acceptable to the department is not subject to any licensing sanction, civil penalty, fine, permit disapproval, or revocation or other sanction for failure to comply with a form or format requirement imposed by statute, ordinance, or rule for submission of the information in physical form, including but not limited to any requirement that the information be in a particular form or of a particular size, be submitted with multiple copies, be physically attached to another document, be an original document or be signed, stamped, sealed, certified, or notarized.

h. As used in this section, "form and format" means the arrangement, organization, configuration, structure, or style of, or method of delivery for, providing required information or providing the substantive equivalent of required information. "Form and format" does not mean altering the substance of information or the addition or omission of information.

2. This act shall take effect immediately.

Approved January 8, 2024.